the Africans in South Africa are suppressed, oppressed and depressed." Even Judge de Wet seemed mystified by Yutar's speech, and at one point interrupted him to say, "Mr. Yutar, you do concede that you failed to prove guerrilla warfare was ever decided upon, do you not?"

Yutar was stunned. He had assumed precisely the opposite. We were surprised as well, for the judge's question gave us hope. Yutar haltingly told the court that preparations for guerrilla warfare were indeed made.

"Yes, I know that," de Wet replied impatiently, "the defense concedes that. But they say that prior to their arrest they took no decision to engage in guerrilla warfare. I take it that you have no evidence contradicting that and that you accept it?"

"As Your Worship wishes," Yutar said in a strangled voice.

Yutar finished by saying that the case was not only one of high treason "par excellence," but of murder and attempted murder — neither of which was mentioned in the indictment. In a fit of bluster, he proclaimed, "I make bold to say that every particular allegation in the indictment has been proved." He knew, even as he uttered those words, that they were patently false.

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Defense counsel Arthur Chaskalson rose first to deal with some of the legal questions raised by the prosecution. He rejected Yutar's statement that the trial had anything to do with murder, and reminded the court that MK's express policy was that there should be no loss of life. When Arthur began to explain that other organizations committed acts of sabotage for which the accused were blamed, de Wet interrupted to say he already accepted that as a fact. This was another unexpected victory.

Bram Fischer spoke next and was prepared to tackle the state's two most serious contentions: that we had undertaken guerrilla warfare and that the ANC and MK were the same. Though de Wet had said he believed that guerrilla warfare had not yet begun, we were taking no chances. But as Bram launched into his first point, de Wet interjected somewhat testily, "I thought I made my attitude clear. I accept that no decision or date was fixed upon for guerrilla warfare."